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File No.: EXP202208983

RESOLUTION No.: R/00131/2023

Considering the complaint filed on July 14, 2022, with this Agency by Ms. A.A.A. against PAYIN7, S.L., for not having duly attended to her rights of access.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Ms. A.A.A. (hereinafter, the complaining party) upon learning that her data had been registered in a solvency file due to a debt, sent a letter to PAYIN7, S.L. with NIF B87374740 (hereinafter, the complained party) requesting "(...) all the necessary documentation informing me of the reason for such a claim and how the amount was generated, principal, applied interest, commissions, etc., in order to verify that they conform to the original signed contract, of which I also request a copy. (...)," as well as the precautionary removal of her data from such files, without her request receiving the legally established response.

The complaining party provides various documents regarding the exercise of the right exercised.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission of complaints filed with the AEPD, consisting of forwarding them to the Data Protection Officers designated by the data controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, the complaint was forwarded to the complained entity for analysis and to respond to the complaining party and this Agency within one month, with no response recorded in this Agency.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the complaining party were satisfied. Consequently, on October 14, 2022, for the purposes provided for in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing and informed the parties that the maximum period to resolve this procedure, which is understood to have been initiated by said admission agreement, will be six months.

C/ Jorge Juan, 6

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2/7

The aforementioned agreement granted the complained entity a hearing period, so that within ten working days it could present the allegations it deemed appropriate.

This entity indicated that the complaining party requested a consumer loan that materialized in the signing of a loan contract dated August 25, 2020. For its validation, since it was done through a digital channel, they requested a copy of her ID as well as an online situ photo.

Subsequently, the complaining party began to default on the installments of that loan, so on June 8, 2022, they sent her an email with information about the defaults, as well as the intention of the complained party to incorporate her data into the ASNEF file.

"Her data was incorporated into ASNEF in accordance with the terms of the previously signed contract. The claimant initiated an Arbitration procedure managed by the Junta de Andalucía and notified EQUIFAX (the entity responsible for the file) of the deletion of her data from the file. EQUIFAX forwarded this notification to us, and both the complained party and EQUIFAX again notified the claimant of the loan default situation. EQUIFAX did so by certified mail, of which we attach proof, and the complained party did so again by email with receipt verification. The proofs are attached as Annex 3."

FOURTH: After examining the allegations presented by the complained party, they are forwarded to the complaining party, so that within fifteen working days she may formulate any allegations she

considers appropriate, with the cited transfer being returned by the postal service with the annotation "Returned to sender due to excess (Not picked up at the office)."

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for the Protection of Data is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of the LOPDGDD.

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the event that they have designated a...

C/ Jorge Juan, 6
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28001 – Madrid
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3/7

Data protection delegate, Article 39 of the GDPR assigns to this delegate the function of cooperating with said authority.

In accordance with this regulation, prior to the admission of the claim that gives rise to this procedure, the claim was forwarded to the responsible entity for analysis, requiring a response to this Agency within one month and proof of having provided the claimant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the claimant. After this period, the interested party may consider their claim accepted."

It is not deemed appropriate to clarify administrative responsibilities within the framework of a sanctioning procedure, whose exceptional nature implies that, whenever possible, preference is given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure the guarantees and rights of the claimant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

C/ Jorge Juan, 6

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language. Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the data controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive more than once during a period of six months, unless there is a legitimate reason for it.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

FOURTH: In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the personal data have been or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization.

The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others, meaning that the right of access shall be granted in such a way that it does not affect third-party data.

FIFTH: Article 18 of the GDPR, which regulates the right to restriction of processing of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the restriction of processing of personal data when one of the following conditions is met:

- a) the data subject contests the accuracy of the personal data, for a period enabling the controller to verify the accuracy of the data;
- b) the processing is unlawful and the data subject opposes the deletion of personal data and requests instead the restriction of its use;

c) the controller no longer needs the personal data for the purposes of processing, but the data subject needs them for the formulation, exercise, or defense of claims;

d) the data subject has objected to processing pursuant to Article 21(1), while verifying whether the legitimate grounds of the controller override those of the data subject.

2. When the processing of personal data has been restricted under paragraph 1, such data may only be processed, except for storage, with the consent of the data subject or for the formulation, exercise, or defense of claims, or for the protection of the rights of another natural or legal person or for important public interest reasons of the Union or of a particular Member State.

3. Any data subject who has obtained the restriction of processing under paragraph 1 shall be informed by the controller before the lifting of that restriction.”

SIXTH: Article 4, Definitions, of the GDPR, provides that:

“For the purposes of this Regulation, the following definitions shall apply:

1) ‘personal data’: any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

(...)”

SEVENTH: In the case analyzed, from the examination of the documentation provided, it has been established that the claimant exercised the rights of access and limitation.

- Regarding the right of access, the respondent, during the processing of this procedure, has provided a copy of the response sent to the claimant indicating the inclusion of their data in the Asnef delinquency file. They also provided a copy of the contract signed between the parties.

From that response, it can be inferred that the requested information has been provided, “(...) how this amount was generated, principal, applied interest, commissions, etc., (...)” therefore, the claim presented to this Agency is dismissed.

The right of access is the right of data subjects to know what data is being processed by the data controller, the data subject to processing, the purpose of this, the origin of the data, and whether it has been or will be communicated to third parties. In general, a copy or access to documents or specific information is not part of the content of the right of access regulated in the current data protection legislation, regardless of whether other regulations support the obtaining of such documentation, as this Agency lacks the authority to analyze it.

- Regarding the right of limitation, the respondent has denied the request due to an outstanding debt. It should be noted that the right to restriction of processing enables the claimant to have the processing of data limited when the accuracy of the personal data is contested, for a period allowing the controller to verify the accuracy of the data; when the processing is unlawful and the data subject opposes the deletion of personal data; when the controller no longer needs the personal data for the purposes of processing, but they are necessary for the formulation, exercise, or defense of claims; or when the data subject has objected to the processing, while verifying whether the legitimate grounds of the controller override those of the claimant.

Regarding the veracity of the debt, as well as other financial issues arising from the contractual relationship, it should be noted that it exceeds the jurisdiction of the Spanish Data Protection Agency to resolve the conflict underlying between the parties, nor to make assessments regarding the civil or commercial validity of the contract, the proper provision of contracted services, or the interpretation of contractual clauses. The determination of legitimacy based on an interpretation of a contract signed between the parties must be pursued before the competent administrative or judicial bodies.

Consequently, the claim presented must be dismissed.

In view of the cited provisions and others of general application, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO DISMISS the claim filed by Ms. A.A.A. against PAYIN7, S.L.

SECOND: TO NOTIFY this resolution to Ms. A.A.A. and PAYIN7, S.L.

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7/7

In accordance with the provisions established in Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions established in Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution, or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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